

'Made in Europe' agenda puts UK-EU trade relations at risk

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【要点】

- ・ EUの産業加速化法（IAA）は、欧州のグリーン化に必要な製品を中国ではなくEU内で製造することを目的としているが、英国の自動車、原子力、水素産業をEUの調達・支援スキームから除外し、報復関税を招く恐れがある。
- ・ 英国はEU執行部と直接交渉できず、EU加盟国と欧州議会の支持を得る必要があるため、妥協案の交渉は困難である。
- ・ アイルランドのEU議長提案では「パートナー地位」を通じて英国製造業をEU公的支出から除外しないことを試みているが、問題となる3産業は対象外とされている。
- ・ IAA提案は厳格な域内製造要件を含んでおり、英国製部品がEU資金機会から除外される可能性がある。
- ・ EU加盟国と欧州議会が依然として異なる立場で交渉中であり、フランスとドイツも現提案で意見が一致していないため、英国とEUの合意達成はさらに困難になる見通しである。

【メール原文】

UK-EU relations are coming under strain. Despite exemptions in the draft IAA legislation for countries that have trade agreements with the EU or allow|||||||

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The EU's Industrial Accelerator Act (IAA), intended to ensure that more of the products needed for Europe's green transition are made in the EU rather than China, risks significant unintended consequences for close partners such as the UK.

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In its current form, the IAA could exclude Britain's automotive, nuclear, and hydrogen sectors from EU procurement and support schemes, which could trigger British retaliation under the Trade and Cooperation Agreement (TCA), including targeted tariffs.

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A compromise may prove difficult: The UK cannot negotiate exemptions with the European Commission but would instead need to secure support from EU member states and the European Parliament.

UK-EU relations are coming under strain. Despite exemptions in the draft IAA legislation for countries that have trade agreements with the EU or allow reciprocal access to their public procurement markets, the current proposal would limit access to EU funding for key UK sectors—including autos, nuclear, and

hydrogen. In these sectors, procurement and state aid account for a large share of the total market, raising concerns among senior UK officials about the impact “Made in Europe” could have on the UK economy. “Our largest trading partner is deindustrializing us,” says one.

Brokering a compromise will be difficult. The Irish EU presidency has attempted to forge a compromise that would allow the UK to win partner status, preventing its manufacturers from being locked out of EU public spending. According to the Irish proposal, a country could obtain partner status if it does not contribute to EU overdependencies and does not jeopardize the security of EU supply chains, criteria that the UK meets. However, the compromise excludes the above-mentioned sectors.

In addition, the draft IAA proposal includes stringent local-content requirements that could exclude UK-made components from EU funding opportunities, depending on the final definitions adopted. A yet-to-be-published EU Public Procurement Directive will extend the IAA logic to more sectors.

The problem for the UK government is that the Made in Europe agenda is not a single measure but a broader process, with different pieces of legislation moving at different speeds. Moreover, EU capitals and the European Parliament are still negotiating the draft IAA proposal. This internal legislative dynamic will make securing a UK-EU deal more difficult, as member states and members of the European parliament are seeking amendments and no collective EU position has yet emerged. France and Germany still disagree on the current proposal. The fluid nature of the process makes collateral damage from the IAA to third countries more likely.

Made in Europe could affect UK-EU trade relations. The TCA contains provisions for the national treatment of procurement and subsidies and incorporates World Trade Organization procurement rules, requiring EU procurement to treat UK suppliers and goods accordingly. UK officials believe the IAA has moved the goalposts and represents a blatant violation of the TCA.

If the issue remains unresolved, the UK will likely seek an arbitration ruling under the TCA. If the UK won, the EU would have to amend its rules. If the EU failed to comply, the UK could suspend TCA concessions equivalent to the economic harm it had suffered. This could be accomplished by excluding EU firms from equivalent UK public contracts or even imposing targeted tariffs on selected EU goods by suspending the TCA’s zero-tariff treatment. As one senior UK official says: “We are keeping our options open.”

The conflict risks jeopardizing the broader UK-EU reset. The two sides were planning a summit later this year to sign off on a deal for the UK to align its legislative rulebook with EU standards in the agri-food and emissions trading sectors to facilitate trade ties. Plans were also underway to integrate the UK into the EU’s electricity market. Moreover, the EU has been seeking access for its nationals to study and work in the UK through a so-called Youth Experience Scheme, which the Made in Europe agenda makes more difficult for Burnham to deliver. As one senior UK official says: “It is hard for us to open our higher education sector to the EU if they close their sectors to us; it doesn’t work politically.”

Burnham was already wary of former prime minister Keir Starmer’s willingness to allow 100,000 young people from EU states to live, work, and study in the UK every year, given the move’s potential to fuel public fears about immigration.

Burnham’s first meeting with European Commission President Ursula von der Leyen on Tuesday—on the sidelines of the UN General Assembly in New York—failed to break the deadlock. No date was announced for a UK-EU summit originally scheduled for July but delayed after Starmer’s resignation. Burnham still hopes the meeting will happen by the end of this year.

The Made in Europe dispute is a setback for Burnham's plans to be bolder than Starmer in forging closer EU links to boost economic growth. Burnham has not ruled out rejoining the bloc in the long term, but for now he is sticking to Labour's 2024 pledge not to rejoin the single market and customs union or restore free movement. He will likely drop these red lines from Labour's next election manifesto.

Happy to discuss,

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